Syllabus

VILLARREAL *v.* TEXAS

CERTIORARI TO THE COURT OF CRIMINAL APPEALS OF TEXAS

No. 24–557. Argued October 6, 2025—Decided February 25, 2026

David Villarreal's murder trial culminated with his own testimony. That testimony was interrupted by a 24-hour overnight recess, during which the trial judge instructed Villarreal's attorneys not to "manage his testimony." 707 S. W. 3d 138, 142. The judge clarified, however, that Villarreal was not prohibited from talking to his attorneys and recognized Villarreal's constitutional right to confer about certain topics, such as possible sentencing issues. Villarreal resumed his testimony 24 hours later and was subsequently convicted of murder. On appeal, the Texas Court of Criminal Appeals concluded that the order was a permissible exercise of the trial court's discretion.

Held: A qualified conferral order that prohibits only discussion of the defendant's testimony for its own sake during a midtestimony overnight recess permissibly balances the defendant's Sixth Amendment right to counsel against the burden of offering unaltered trial testimony and does not violate the Constitution. Pp. 470–480.

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(a) The Sixth Amendment guarantees as "fundamental" a criminal defendant's right to consult with counsel. *Powell* v. *Alabama*, 287 U. S. 45, 68. When a defendant takes the witness stand, however, he "[a]ssum[es] the position of a witness," with its attendant "criticisms and burdens." *Reagan* v. *United States*, 157 U. S. 301, 305. These include the inability to receive advice from counsel aimed at "influenc[ing] the testimony in light of the testimony already given." *Geders* v. *United States*, 425 U. S. 80, 87. In *Geders*, the Court held that a judge may not entirely prevent a testifying defendant from conferring with his lawyer during an overnight recess, reasoning that a defendant differs from a normal witness because he has matters "other than his own testimony" to discuss, such as "tactical decisions," "strategies," and the "significance of the day's events." *Id.*, at 88. In *Perry* v. *Leeke*, 488 U. S. 272, 283–284, however, the Court held that a judge may prevent a testifying defendant from conferring with his lawyer during a brief daytime recess because "there is a virtual certainty that any conversation" during such a recess "would relate to the ongoing testimony," and a defendant does not have a protected Sixth Amendment right to discuss ongoing testimony with his lawyer. Pp. 470–473.

(b) The line between *Geders* and *Perry* is substantive, not merely temporal. *Perry*'s premises are content based: A testifying defendant

has a constitutional right to consult about matters such as "the availability of other witnesses, trial tactics, or . . . plea bargain[ing]," 488 U. S., at 284, but where no nontestimony topics are involved, the Sixth Amendment provides no constitutional right to consultation during breaks in testimony, *id.*, at 281. A defense attorney may rehearse a client's testimony before the client takes the stand and debrief testimony after the client leaves the stand for good. But while the defendant is sworn in as a witness, consultation about the testimony itself—rather than incidental discussion of testimony in service of other protected topics—sheds its constitutional protection. This conclusion follows from the Court's precedents as well as from the basic principles underlying conferral orders. Conferral orders embody the traditional practice of witness sequestration, refashioned to accommodate the special protections of a defendant; a rule prohibiting discussion of testimony for its own sake mimics sequestration within constitutional bounds and advances the central truth-seeking function of the trial, see *Portuondo* v. *Agard*, 529 U. S. 61, 73. Pp. 473–476.

(c) The trial judge's order here prohibited Villarreal's lawyers from "*managing*" his "ongoing testimony." This order permissibly balanced the truth-seeking function of the trial against Villarreal's right to discuss protected topics with his lawyers—things like trial strategy, whether to consider a guilty plea, and factual information crucial to tactical decisions. A court cannot prohibit a defendant from obtaining his attorney's advice on whether and why he should consider a guilty plea, even if the "why" includes the impact of ongoing testimony on the trial's prospects. But it may, like the court here did, prohibit discussion of testimony as such. Pp. 477–478.

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(d) The Court rejects Villarreal's request for a bright-line rule permitting no restrictions overnight to prevent chilling of protected discussion. Courts of appeals that have prohibited uncompromising no-testimony-discussion orders reasonably feared that directives preventing all discussion of testimony would be impermissibly overbroad. An order prohibiting only discussion of "nothing but the testimony," *Perry*, 488 U. S., at 284, does not present the same concern. Consultation about testimony itself—practicing it, debriefing it, and the like—is a recognized, distinct tool in every trial lawyer's preparatory arsenal, and lawyers ordered to sheathe that tool overnight will have no difficulty doing so. Pp. 478–480.

707 S. W. 3d 138, affirmed.

JACKSON, J., delivered the opinion of the Court, in which ROBERTS, C. J., and ALITO, SOTOMAYOR, KAGAN, KAVANAUGH, and BARRETT, JJ., joined. ALITO, J., filed a concurring opinion, *post*, p. 481. THOMAS, J., filed an

opinion concurring in the judgment, in which GORSUCH, J., joined, *post*, p. 485.

Stuart Banner argued the cause for petitioner. With him on the briefs were *Daniel L. Geyser*, *Michael F. Qian*, and *Edward F. Shaughnessy III*.

Andrew N. Warthen argued the cause for respondent. With him on the brief was *Joe D. Gonzales*.

Kevin J. Barber argued the cause for the United Sates as *amicus curiae* supporting respondent. With him on the brief were *Solicitor General Sauer, Acting Assistant Attorney General Galeotti*, *Deputy Solicitor General Feigin*, and *Ethan A. Sachs*.*

JUSTICE JACKSON delivered the opinion of the Court.

A criminal defendant has many unassailable rights during his trial, including the right not to testify and the right to access his lawyer. But if and when a defendant takes the witness stand in his own defense, his status shifts. He does not shed his rights as a criminal defendant. But he does assume some of the burdens of a testifying witness.

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*Briefs of *amici curiae* urging reversal were filed for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Alexis Hoag-Fordjour*; for Legal Ethics Scholars by *David A. Strauss*, *Sarah M. Konsky*, and *Matthew S. Hellman*; for the National Association of Criminal Defense Attorneys by *Andrea Roth* and *Barbara E. Bergman*; for the National College for DUI Defense by *Steven W. Hernandez*, *Michelle Behan*, and *Donald J. Ramsell*; and for Retired Judges by *Gregg Costa* and *Ryan Azad*.

A brief of *amici curiae* urging affirmance was filed for the State of Ohio et al. by *Dave Yost*, Attorney General of Ohio, *T. Elliott Gaiser*, Solicitor General, and *Jana M. Bosch*, Deputy Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Theodore E. Rokita* of Indiana, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Andrew Bailey* of Missouri, *Austin Knudsen* of Montana, *Drew H. Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, and *Jason Miyares* of Virginia.